

**Court No. - 3**

**Case :-** WRIT - C No. - 21193 of 2022

**Petitioner :-** Pitam Singh

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Pradeep Kumar Yadav

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Surya Prakash Kesarwani,J.**

**Hon'ble Jayant Banerji,J.**

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Baleshwar Chaturvedi, learned counsel for the respondent no. 4.

2. This writ petition has been filed praying for the following reliefs :

"(i) Issue a writ order or direction in nature of certiorari quashing the impugned recovery notice dated 24.06.2022 issued by the respondent no. 4, amounting Rs. 59055/- from the petitioner.

(ii) Issue a writ order or direction in the nature of mandamus directing the respondents not to take amount of Rs. 59055/- from the petitioner."

3. Learned counsel for the respondent no. 4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the Executive Engineer concerned within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the Executive Engineer concerned in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

**Order Date :-** 1.8.2022

A. V. Singh